

GORSUCH, J., dissenting

government has [now] duplicated virtually every major state crime.”⁹⁶ Others estimate that the U. S. Code contains more than 4,500 criminal statutes, not even counting the hundreds of thousands of federal regulations that can trigger criminal penalties.⁹⁷ Still others suggest that “[t]here is no one in the United States over the age of 18 who cannot be indicted for some federal crime.”⁹⁸ If long ago the Court could have thought “the benignant spirit” of prosecutors rather than unwavering enforcement of the Constitution sufficient protection against the threat of double prosecutions, it’s unclear how we still might.

That leaves reliance. But the only people who have relied on the separate sovereigns exception are prosecutors who have sought to double-prosecute and double-punish. And this Court has long rejected the idea that “law enforcement reliance interests outweigh[h] the interest in protecting individual constitutional rights so as to warrant fidelity to an unjustifiable rule.”⁹⁹ Instead, “[i]f it is clear that a practice is unlawful, individuals’ interest in its discontinuance clearly outweighs any law enforcement ‘entitlement’ to its persistence.”¹⁰⁰ That is the case here.

The Court today disregards these lessons. It worries that overturning the separate sovereigns rule could undermine the reliance interests of prosecutors in transnational cases who might be prohibited from trying individuals already acquitted by a foreign court. *Ante*, at 686–687. Yet even on its own

⁹⁶ E. Meese, Big Brother on the Beat: The Expanding Federalization of Crime, 1 Tex. Rev. L. & Pol. 1, 22 (1997).

⁹⁷ See Wilson, That Justice Shall Be Done, 36 No. Ill. L. Rev. 111, 121 (2015).

⁹⁸ Clark & Joukov, Criminalization of America, 76 Ala. L. 225 (2015). See also Larkin, Public Choice Theory and Overcriminalization, 36 Harv. J. L. & Pub. Pol’y 715, 726 (2013) (“There are so many federal criminal laws that no one, including the Justice Department, the principal federal law enforcement agency, knows the actual number of crimes”).

⁹⁹ *Arizona v. Gant*, 556 U. S. 332, 350 (2009).

¹⁰⁰ *Id.*, at 349.